

		"frivolous" or in "bad faith" where "any reasonable attorney would agree [it] is totally devoid of any merit," i.e., lacking any basis in statutory or case law, or without any necessary evidence to support it. (<i>Karwasky v. Zachay</i> (1983) 146 Cal.App.3d 679, 681.) Here, Plaintiffs failed to show the motion at issue was frivolous and/or failed to produce any evidence of bad faith. Though Defendant's position that it did not need to comply with the 21-day safe harbor rule was rejected and Defendant's reliance on <i>Changsha Metro Group Co., Ltd. v. Xufeng</i> (2020) 57 Cal.App.5th 1 was misplaced, it cannot be said the motion was totally devoid of any merit. The motion is therefore DENIED. Defendant's request for attorney fees is also DENIED. "If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion." (Code of Civ. Proc. § 128.5, subd. (f)(1)(C).) Here, Defendant's sanctions motion was not "frivolous" but it lacked merit. Defendant had the opportunity to withdraw the sanctions motion after Plaintiff served the 21-day safe harbor provision but instead opted to pursue the meritless motion. Counsel for Defendant shall provide notice of this ruling.
4	National Collegiate Student Loan Trust 2007-2 v. Serrao	The motion to set aside dismissal and enter judgment filed by plaintiff National Collegiate Student Loan Trust 2007-2 (Plaintiff) against defendant Jessica Serrao (Defendant) is CONTINUED to October 5, 2026, at 2:00 p.m. in Department N17. The notice of motion lists an incorrect address for the hearing. Although the notice of motion correctly states the date and time of the hearing and that the matter will be heard in Department N17, the notice incorrectly lists the court address as 700 Civic Center Drive West, Santa Ana, CA, and the caption incorrectly states the justice center is Complex Justice Center. Due to these discrepancies, the Court will continue the hearing as stated above to ensure Defendant receives proper notice of the hearing on this motion. Plaintiff is ordered to file an amended notice of motion and proof of service thereof showing Defendant was provided with timely notice of the correct date, time and location of the new hearing. Plaintiff is ordered to give notice of this ruling.
5	Kennedy vs. Maksoud	Before the Court at present is the Special Motion to Strike Cross-Complaint, etc., filed on 6/17/25 by Dr. Charbel Maksoud ("Maksoud"), as to the Cross-Complaint filed on 5/18/26 by Alexandre Sadek ("Sadek"). Maksoud has failed to show that the Motion was properly served. The proof of service presented with the Motion (ROA 90) fails to show that the Motion was duly served on all parties who have appeared in the action, or that service was properly effectuated on Sadek by a means other than electronic service, as a self-represented party may not be served electronically unless such service has been expressly consented to. (See C.C.P. §§ 1010.6(c),